23STCV07047 23STCV07047

County: los-angeles

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Case Number: 23STCV07047 Hearing Date: August 3, 2026 Dept: 1

Final

Approval of Class Action Settlement

Department

SSC-1

Lowe v. Rapid Reliable Testing, LLC, et al.

Case Number: 23STCV07047

Hearing: August 3, 2026

TENTATIVE

RULING

The Court hereby GRANTS final

approval and awards the following: (1) $73,333.33

(33 1/3%) for attorney fees to Class Counsel, Justice Law Corporation; (2) $15,000.00 for attorney costs to Class

Counsel; (3) enhancement payments of $7,500.00

each to class representatives, Paul Lowe and Corielyn Marie Hall, for a

total of $15,000.00; (4) $7,500.00 (75% of $10,000 PAGA penalty)

to the LWDA; and (5) $10,000.00 for

settlement administration costs to Phoenix Class Action Administration

Solutions.

BACKGROUND

This is a wage and hour class action.

Plaintiff Paul Lowe filed the Lowe Action on March 30, 2023, and Plaintiff Corielyn Marie Hall filed the Hall Class Action and the Hall PAGA Action on December 14, 2023 and February 20, 2024, respectively.

On August 26, 2025, the parties filed the Operative First Amended Complaint which alleged the following causes of action: 1) Violation of B&PC §17200, et seq.; 2) Violation of Labor Code §§ 204, 510, 1194 and 1198; 3) Violation of Labor Code §§ 200, et seq.; 4) Failure to Pay Meal and Rest Break Premiums at the Proper Regular Rate of Pay (Labor Code §226.7); 5) Failure to Provide & Maintain Accurate Wage Statements Pursuant to Labor Code §226; 6) Failure to Provide Meal Periods (Lab. Code §226.7); 7) Failure to Provide Rest Breaks (Lab. Code §226.7); 8) Failure to Reimburse Expenses (Lab. Code §2802); and 9) Violation of Labor Code §§2698-2699 (PAGA).

Counsel represents that the parties engaged in informal discovery wherein Defendant produced a sampling of time and payroll records, and Excel spreadsheets with thousands of lines of data for the class, and Class Counsel hired damages expert EconONE Research, Inc., to analyze the payroll and related wage data and to create a damages model for the various claims alleged in the case.

On February 5, 2025, the parties attended a full-day Mediation before wage and hour mediator, Gig Kyriacou, Esq, and were able to reach a settlement which was memorialized in a Memorandum of Understanding on March 25, 2025. A fully executed long form settlement agreement was filed with the Court on August 28, 2025 attached to the Declaration of Aaron A. Bartz ("Bartz Decl.") ISO Preliminary Approval, as Exhibit A.

On February 6, 2026, the Court continued preliminary approval for further briefing and revisions. In response, in March 6, 2026, counsel filed a fully executed Amended Settlement Agreement attached to the Supplemental Declaration of Aaron A. Bartz ("Bartz Supp. Decl.") ISO Preliminary Approval, as Exhibit 3.

Preliminary Approval was granted on March 19, 2026. Notice was given to the Class Members as ordered. (See Declaration of Jarrod Salinas ("Salinas Decl.")).

Now before the Court is the motion for
final approval of the settlement agreement.

CLASS
DEFINITION AND ESSENTIAL MONETARY TERMS OF SETTLEMENT AGREEMENT

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"Class" means all current and former non-exempt employees who worked in California for Defendants during the Class Period. (Settlement Agreement, ¶1.5)

o "Class Period" means the period from April 5, 2021 through April 5, 2025. (¶1.12)

o There are 574 Class Members. (Salinas Decl., ¶3.)

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"Aggrieved Employee" means all current and former non-exempt employees who have worked in California for Defendants at any time during the PAGA Period. (¶1.4)

o "PAGA Period" means the period from March 30, 2022 through April 5, 2025. (¶1.31)

o There are 495 Aggrieved Employees who worked a total 4,049 workweeks during the PAGA Period. (Salinas Decl., ¶15.)

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Based on its records, Defendants estimate that between April 5, 2021 through February 5, 2025, there are approximately 11,900 Workweeks. Should the final Workweek Amount increase by more than 10% (i.e. if the final workweeks being released are greater than 13,090) for the Class Period, the Gross Settlement Amount shall be increased proportionally by the Workweeks in excess of 13,090. For example, if the Workweeks exceed 11,900 by 12% , then the Gross Settlement Amount will increase by 2%. (¶9)

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The total number of Workweek was

7,826, which does not exceed 13,090; thus the Escalator Clause was not

triggered. (Salinas Decl., ¶12)

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The

Gross Settlement Amount ("GSA") is $220,000, non-reversionary. (¶3.1)

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The

Net Settlement Amount ("Net") ($99,166.67) is the GSA minus the

following:

o Up to $73,333.33 (33%) for attorney

fees (¶3.4);

o Up to $15,000 for litigation costs (Ibid.);

o Up to $15,000 for Service Payments to

the Named Plaintiffs ($7,500 each) (¶3.3);

o Up to $10,000 for settlement

administration costs (¶3.5); and

o Payment of $7,500 (75% of $10,000 PAGA

penalty) to the LWDA. (¶3.7)

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Defendants

will pay their share of employer-side taxes separate from the GSA. (¶3.1)

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Funding

of Settlement: Defendants shall fully fund the Gross Settlement Amount,

and also fund the amount necessary to fully pay Defendants' share of payroll

taxes within 20 days of the Effective Date. All such funds shall be transmitted

to the Administrator. (¶4.3)

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Uncashed Settlement Checks: The Administrator will cancel all checks not cashed by the void date (180 days after the date of mailing). (¶4.4.1) For any Class Member whose Individual Class Payment check or Individual PAGA Payment check is uncashed and cancelled after the void date, the Administrator shall transmit the funds represented by such checks to California Controller’s Unclaimed Property Fund in the name of the Class Member thereby leaving no “unpaid residue” subject to the requirements of California Code of Civil Procedure Section 384, subd. (b). (¶4.4.3)

Counsel represents that Plaintiffs have transmitted all papers filed with this Court to the Labor Workforce and Development Agency/Department of Industrial Relations, by online submission, at its website located at https://dir.govfa.net/315. (Bartz Decl. ISO Preliminary Approval, ¶33.)

ANALYSIS
OF SETTLEMENT AGREEMENT

A.
Does
a presumption of fairness exist?

The Court preliminarily found in its Order on March 19, 2026 that the presumption of fairness should be applied. No facts have come to the Court’s attention that would alter that preliminary conclusion. Accordingly, the settlement is entitled to a presumption of fairness as set forth in the preliminary approval order.

B. Is the settlement
fair, adequate, and reasonable?

The settlement was preliminarily found to be fair, adequate and reasonable. Notice has now been given to the Class and the LWDA.

Reaction of the class
members to the proposed settlement.

Number of class
members: 574 (Salinas Decl., ¶3.)

Number of notice
packets mailed: 574 (Id. at ¶5.)

Number of
undeliverable notices: 0 (Id. at ¶7.)

Number of
opt-outs: 0 (Id. at ¶8.)

Number of
objections: 0 (Id. at ¶9.)

Number of
participating class members: 574 (Id. at ¶11.)

Average
individual payment: $168.41 (Id. at ¶14.)

Highest
estimated payment: $2,211.01 (Ibid.)

Lowest
estimated payment: $12.35 (Ibid.)

Number of
Aggrieved Employees: 495 (Id. at ¶15.)

Average PAGA
payment: $5.05 (Ibid.)

Highest PAGA payment: $62.98 (Ibid.)

Lowest PAGA payment: $0.62 (Ibid.)

The Court finds that the notice was

given as directed and conforms to due process requirements. Given the reactions of the Class Members and LWDA to the proposed settlement and for the reasons set for in the Preliminary Approval order, the settlement is found to be fair, adequate, and reasonable.

C.
Attorney
Fees and Costs

Class Counsel request $73,333.33 (33%) in fees and litigation costs and expenses in the amount of $15,000 to Class Counsel. (Motion ISO Final, 17:16-17; 20:19-21.) The Settlement provides for attorney's fees up to $73,333.33 and costs of $15,000. (Settlement Agreement, ¶3.4); the class was provided notice of the requested awards and none objected. (Salinas Decl., ¶9 and Exhibit A thereto.)

"Courts recognize two methods for calculating attorney fees in civil class actions: the lodestar/multiplier method and the percentage of recovery method." (Wershba at 254.) Here, class counsel requests attorney fees using the percentage method. (Motion ISO Final, pgs. 16-20.)

Plaintiffs' have agreed to the following fee split in writing: 2/3 to Bartz Law Group APC and United Employees Law Group PC; and 1/3 to Bibiyan Law Group PC. (Notice, ¶C.2.a)

The fee request represents 33% of the gross settlement amount which is the average generally awarded in class actions. See In re Consumer Privacy Cases (2009) 175 Cal.App.4th 545, 558, fn. 13 ("Empirical studies show that, regardless whether the percentage method or the lodestar method is used, fee awards in class actions average around one-third of the recovery.").

Counsel has provided the following lodestar information:

Biller

Rate

Hours

Lodestar

United
Employees Law Group, PC

$750- $900

8.2

$6,465.00

Bartz Law Group APC

$195- $1,025

263

$188,094.00

Bibiyan Law Group, P.C

$95 -$800

117.2

$73,135.00

TOTAL

388.4

$267,694.00

(Bartz Decl. ISO Final, ¶¶21-22, and Exhibit 4
thereto; Reali Decl. ISO Final, ¶¶10-11; Bibiyan Decl. ISO Final, ¶16.)

Therefore, Class Counsel will have spent over 388.4 hours on this litigation for a total loadstar of $267,694, resulting in a negative multiplier to reach the fee request. (Ibid.)

As for costs, class counsel has incurred costs of over $16,000. (Bartz Decl. ISO Final, ¶23 and Exhibit 5 thereto; Bibiyan Decl. ISO Final, ¶19 and Exhibit 1 thereto.)

Class Counsel is requesting $15,000 in costs, which is equal to the settlement cap of $15,000. (Ibid.) The class was provided notice of the costs in the amount of $15,000, and none objected. (Salinas Decl., ¶9 and Exhibit A thereto.) The costs in this case include, but are not limited to filing/service costs ($1,452.15), All-N-One Legal Support (>$1,448.70), EconOne costs ($5,965.63), and case anywhere costs. (Bartz Decl. ISO Final, ¶23 and Exhibit 5 thereto; Bibiyan Decl. ISO Final, ¶19 and Exhibit 1 thereto.) The costs seem reasonable and necessary to litigation.

Based on the above, the Court awards $73,333.33 for fees and $15,000 for litigation costs.

D. Incentive Awards to Class Representatives

The Settlement Agreement provides for up to $15,000 for Service Payments to the Named Plaintiffs ($7,500 each). (Settlement Agreement, ¶3.3.)

Plaintiff Lowe represents that his contributions to this litigation include, but are not limited to the following: obtaining counsel, gathering documents, reviewing documents, identifying witnesses, numerous conversations with counsel, remaining available during mediation, and reviewing the settlement agreement. (Lowe Decl., ¶¶4-8.)

Plaintiff Hall represents that her contributions to this litigation include but are not limited to spending over 26 hours on the following: obtaining counsel, having numerous conversations with counsel, gathering documents, reviewing documents, remaining available for mediation by telephone, and reviewing the settlement agreement. (Hall Decl., ¶¶11-17.)

Based on the above, the Court grants enhancement awards in the amounts of $7,500 per Plaintiff for a total of $15,000.

E. Claims Administration Costs

The claims administrator requests $10,000 for the costs of administering the settlement. (Salinas Decl., ¶17.) This equal to the $10,000 maximum amount estimated in the Settlement Agreement and disclosed in the notice to class members, to which there were no objections. (Salinas Decl., ¶9 and Exhibit A thereto.)

Based on all the work performed by the Claims Administrator, the Court awards costs in the requested amount of $10,000.